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**JUSTIFICATION & APPROVAL (J&A) FOR OTHER THAN FULL AND
OPEN COMPETITION (OTFAOC)**

Justification for OTFAOC Number: JA25-054

Purchase Request Number: HC1085504134

Contract Number: HC102824C0003

Task/Delivery Order Number: Not Applicable (N/A)

Procurement Title: Approved Products Certification (APCO) and Transport Services Support Bridge

Estimated Value: [REDACTED]

Statutory Authority: Federal Acquisition Regulation (FAR) 6.302-1

Upon the basis of the following justification, I, as Procuring Activity Competition Advocate (PACA), hereby approve the use of OTFAOC of the proposed contractual action pursuant to the authority of 10 U.S.C. 3204(a)(1).

1. REQUIRING AGENCY AND CONTRACTING ACTIVITY:

Requiring Agency:

Defense Information Systems Agency (DISA)/ Transport Program Executive Office
(PEO Transport) Services

6910 Cooper Avenue

Fort Meade, Maryland 20755

Contracting Activity:

DISA/Defense Information Technology Contracting Organization (DITCO)/PS8313

2300 East Drive

Building 3600

Scott Air Force Base, Illinois 62225

2. NATURE/DESCRIPTION OF ACTION(S): The nature of this action is to procure the continuation of APCO and Transport Services support via a bridge modification which will extend the period of performance (PoP) of the contract, HC102824C0003. The PoP for the current contract ends May 02, 2025. The anticipated PoP for the bridge is a 3.25-month period of May 03, 2025 – Aug. 11, 2025. This extension will ensure continued support during the protest period of the follow-on contract/order. The APCO and Transport Services Support effort actively supports the oversight and continuity of approving authority for all Military Departments and Department of Defense (DoD) agencies in the acquisition of communication equipment that is to be connected to the DoD Information Network (DODIN) and the Defense Information Systems Network (DISN), with an increased level of confidence through Interoperability and Cybersecurity (IO/CS) certification. Fiscal Year 2025 Operations and Maintenance funding will

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be used. The modification will increase the current life cycle value by [REDACTED] from [REDACTED] to [REDACTED]

3. DESCRIPTION OF SUPPLIES/SERVICES: Continuity of services is required for support to PEO Transport. The contract provides oversight and continuity of approving authority for all Military Departments and DoD agencies in the acquisition of communication equipment that is to be connected to the DODIN and the DISN, with an increased level of confidence through IO/CS certification. These services include maintaining the APCO in support of the DODIN Approved Product List (APL) process and developing, operating, and maintaining the APL Integrated Tracking System which tracks and stores information regarding DoD APL IO/CS testing status to include real time contractor product plans. Failure to provide these APCO and IE support services would be devastating to the warfighter and have worldwide ramifications. Specifically, this could result in mission failure and unnecessarily endanger lives.

The current contract expires on May 02, 2025. This effort was re-competed as a small business set-aside acquisition. On March 17, 2025, the follow-on contract/order, HC102818D0027/HC102825F6520, was awarded. The bid protest was submitted in a timely manner to trigger an automatic suspension of performance of the follow-on contract/order pending resolution of the protest in accordance with FAR 33.103(f)(3). The extension of the current contract will allow for continued support of this vital program during the protest period, while retaining the ability to provide a consistent level of effort for PEO Transport and its stakeholders without a break in service.

The estimated cost of labor support for this extension is [REDACTED]. Travel and other direct costs are not anticipated to be required.

4. IDENTIFICATION OF STATUTORY AUTHORITY: Only one responsible source and no other supplies or services will satisfy agency requirements, 10 U.S.C. 3204(a)(1), FAR 6.302-1, and Defense Federal Acquisition Regulation Supplement 206.302-1.

5. DEMONSTRATION OF CONTRACTOR'S UNIQUE QUALIFICATIONS:

(a) *Description of events.* HC102818D0027/HC102825F6520 was competed under solicitation number 832369148. Award of HC102818D0027/HC102825F6520 was made on March 17, 2025 and this award was protested. Thereafter, a stop-work order was issued.

(b) *Justification.*

(1) Minimum Government Requirements. PEO Transport and its mission partners all depend on the services to continue testing and certifying equipment prior to being connected into the DISN or DODIN network. The service requires contractor interaction and engagement with the testing lab to ensure operable equipment. These services include maintaining the APCO in support of the DODIN APL process and developing, operating, and maintaining the APL Integrated Tracking System which tracks and stores information regarding DoD APL IO/CS testing status to include real time contractor product plans. Failure to provide these APCO and Transport Services support services would be

devastating to the warfighter and have worldwide ramifications. Specifically, this could result in mission failure and unnecessarily endanger lives. Due to the breadth and depth of the requirements, no alternate contractor can develop the work force necessary to replace the current support team and achieve an initial satisfactory level of support expeditiously.

- (2) Proposed sole source contractor. Due to the bid protest, enGenius Consulting Group, Inc (enGenius) is the only source that can fulfill this requirement without risk of a substantial break in service/support to DISA and its mission partners. Again due to the bid protest filed by AIX Tech, LLC, enGenius is the only source that can supply the needed services during this period without a break in service.
- (3) A sole-source action is necessary due to a protest filed in response to the award of the follow-on contract, HC102818D0027/HC102825F6520. If a bid protest had not been received, this extension would not be necessary.

6. CONTRACT OPPORTUNITIES ANNOUNCEMENT/POTENTIAL SOURCES: This modification is a bridge extension of the existing contract until the protest of the follow-on contract/order can be resolved. Solicitation 832369148 for the follow-on contract/order was solicited using the ENCORE III Small Business Suite Indefinite Delivery Indefinite Quantity (IDIQ) on October 18, 2024 as a small business set-aside. Three proposals were received. Award was made on March 17, 2025.

7. DETERMINATION OF FAIR AND REASONABLE COST: Prior to award of HC102824C0003 (solicitation number HC102824R0010), a cost/price evaluation was conducted in accordance with FAR 15.404. The contract prices were determined to be reasonable. The proposed cost/prices for the extension will be compared to the current contract prices as well as the Independent Government Cost Estimate in order to determine fair and reasonableness.

8. MARKET RESEARCH: This is an extension to the existing contract to ensure continued support until the protest and transition period of the follow-on contract/order, HC102818D0027/HC102825F6520, are complete. Market research was conducted for the follow-on contract/order which was conducted within the last 12 months. The market research identified potential sources which enabled the follow-on contract/order to be conducted as a small business set-aside against the ENCORE III Small Business Suite IDIQ.

9. ANY OTHER SUPPORTING FACTS: N/A

10. LISTING OF INTERESTED SOURCES: N/A

11. ACTIONS THE AGENCY MAY TAKE TO REMOVE OR OVERCOME BARRIERS THAT LED TO THE EXCEPTION TO FULL AND OPEN COMPETITION.

- (a) Current Contract: HC102824C0003

- (b) Status: Expires May 2, 2025. Competitive Small Business Set-Aside Source Selection completed for follow-on. Award announced March 17, 2025. Stop-work order was issued on March 26, 2025 due to a bid protest.

12. REFERENCE TO THE APPROVED ACQUISITION PLAN (AP): An AP was not required for this effort as it does not meet the dollar threshold.

TECHNICAL CERTIFICATION: I certify that the supporting data under my cognizance which are included in the J&A are accurate and complete to the best of my knowledge and belief.

NAME: Rueben D. Amlalo

SIGNATURE: AMLALO.RUEBEN.
DUGBANOR.16247
23453

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AMLALO.RUEBEN.DUGBANOR.
1624723453
Date: 2025.04.09 12:10:34 -04'00'

TITLE/ORGANIZATION: Program Analyst/COR/IE62

PHONE: [REDACTED]

REQUIREMENTS CERTIFICATION: I certify that the supporting data under my cognizance which are included in the J&A are accurate and complete to the best of my knowledge and belief.

NAME: Gloria L. Witherspoon

SIGNATURE: WITHERSPOON.G
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979721
Date: 2025.04.09 13:42:02 -04'00'

TITLE/ORGANIZATION: Chief/Mission Support Division IE6

PHONE: [REDACTED]

CONTRACTING OFFICER CERTIFICATION: I certify that this justification is accurate and complete to the best of my knowledge and belief.

NAME: Shamra Y. Joiner

SIGNATURE: JOINER.SHAMRA.
Y S.1065300580

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JOINER.SHAMRA.Y
S.1065300580
Date: 2025.04.10 16:12:52 -05'00'

TITLE/ORGANIZATION: Contracting Officer/DITCO/PS8313

PHONE: 667-891-4529

PROCURING ACTIVITY COMPETITION ADVOCATE APPROVAL: I have reviewed this justification and find it to be accurate and complete to the best of my knowledge and belief. Since this justification does not exceed \$15M, this review serves as approval.

NAME: Gay D. Arnold

SIGNATURE: ARNOLD.GAY
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Date: 2025.04.14
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TITLE/ORGANIZATION: PACA/PS21

PHONE: [REDACTED]

ALL QUESTIONS REGARDING THIS JUSTIFICATION ARE TO BE REFERRED TO:
Vanessa Gonzalez, vanessa.m.gonzalez2.civ@mail.mil, 667-891-6273 and/or Shamra Joiner.
shamra.y.joiner.civ@mail.mil, 667-891-4529.